

9. 9:00 AM CASE NUMBER: C25-00491
CASE NAME: KATHERINE WILSON VS. ALYSSA DOE
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. KELLER
FILED BY: DOE, ALYSSA
TENTATIVE RULING:

Summary

This Tentative Ruling is for Lines 9 and 10. Christopher J. Keller's Motions to be Relieved as Counsel of Record for Defendants Alyssa Doe and Elite Facials, LLC are **granted**. No appearance is required at the hearing on November 26, 2025.

Background

On September 17, 2025, Christopher J. Keller, Esq., filed a Notice of Motion and Motion to be Relieved as Counsel of Record for Defendants Alyssa Doe and Elite Facials, LLC. In his Motion, counsel cites to "irreconcilable differences," which the Court considers to be a breakdown in the attorney-client relationship that makes continued representation unreasonably difficult. The Motions are not opposed by Plaintiff. Notice was provided to Defendants Alyssa Doe and Elite Facials, LLC.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to both Defendants and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Defendants' Counsel. The Court acknowledges that the prejudice to Defendants are minimal, as they have not shown a willingness or availability to be involved in this case. This case was filed in 2025 and a trial date has not been set. Defendants have time to retain replacement counsel.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. Both Motions are **granted**.

Counsel is ordered to submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053). The withdrawal is effective upon service of a copy of the File Endorsed Order to Defendants Alyssa Doe and Elite Facials, LLC by mail at his last known address. No appearance is necessary at the hearing on November 26, 2025.

10. 9:00 AM CASE NUMBER: C25-00491
CASE NAME: KATHERINE WILSON VS. ALYSSA DOE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. KELLER**
FILED BY: ELITE FACIALS, LLC
TENTATIVE RULING:

See Line 9, above.

11. 9:00 AM CASE NUMBER: C25-00654
CASE NAME: IFGFGISI EAST BAY CHURCH VS. GARY HEATH
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: HEATH, GARY L.
TENTATIVE RULING:

Defendants Gary Heath and Kelly Heath's demurrer to the complaint is **overruled**. Defendants shall file and serve an answer within 10 days of notice of entry of this order.

Plaintiff IFGFGISI East Bay Church (the Church) is suing Gary Heath and Kelly Heath, individually and as trustees of The Heath Family Trust and d/b/a The Pool Doctor. The Church alleges that it owns property abutting Defendants' property and that the Church has an easement over a portion of Defendants' property. The Church is bringing claims for (1) ejectment, (2) enforcement of easement, (3) declaratory relief, (4) breach of easement, (5) trespass, (6) nuisance and (7) injunctive relief.

As an initial matter, the Court notes that Defendants filed a notice of motion and a memorandum, but did not file a proper demurrer. "Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." (California Rules of Court, rule 3.1320 (a); see also Code of Civil Procedure section 430.60.) The Court exercises its discretion to consider the demurrer despite the failure to comply with this section.

Gary Heath and Kelly Heath have demurred to each cause of action based upon the failure to state sufficient facts to constitute a cause of action, Code of Civil Procedure section 430.10(e).

Defendant filed its reply on November 20, which is one day late. The Court again exercises its discretion to consider the late filed reply, however, the Court cautions that future violations of the rules may result in the filing being disregarded. (California Rules of Court, rule 3.1300(d).)

Individual Capacity

Defendants' main argument is that the Heaths should not be sued in their individual capacity and should only be sued as trustees of The Heath Family Trust because the Trust owns the property at issue.

" '[T]he trustee, rather than the trust, is the real party in interest in litigation involving trust property.' [Citations.]" (*Nicholson v. Fazeli* (2003) 113 Cal.App.4th 1091, 1102.) While mere control over a trust is not sufficient to subject a trustee to individual liability, a trustee may be "personally